in commerce"[3]. The intellectual property rights refer to the recognised ownership of the intellectual property to creator, inventor and innovator. The ownership is ensured through copyrights, patents, etc. TRIPS cover copyright and related rights, trademarks including service marks, geographical indictors, industrial designs, patents, lay out designs (topographies) of integrated circuits, trade secrets.

Copyright

Copyright is related with literary and artistic works like books, lectures, sermons, music etc. The copyright refers to the right conferred on creator, author and producer etc. These rights are protection rights and authorisation rights. The protection right signifies the right of the author to protect his work from being copied by others. The authorisation right denotes the right of author to allow others to reproduce, copy etc., against which he can claim pecuniary benefit.

Trademark

Trademark refers to the symbols that give unique identity to products of particular producer. The Trademarks Act 1999 observes as follows ""trademark" means, a mark capable of being represented graphically and which is capable of distinguishing the goods or services of one person from those of others and may include shape of goods, their packaging and combination of colours"[4]

If trademark rights are conferred to any one, others are prevented from copying or using of that trademark.

Geographical Indicator

Geographical indicator denotes the unique identity attached to a particular product for the reason that particular product